Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1097
Claimant:	Todd Lee
Adjuster:	Darin Tyler

09/13/2023
Claim opened after the insured reported a rear-end collision at a signalized intersection. The adjuster confirmed the policy was active and the reporting driver is named on the policy.

09/14/2023
Photos taken at the scene confirm some details of the impact, including the position of both vehicles after the collision. No independent witnesses have come forward to the adjuster.

11/03/2023
Vehicle damage to the rear of the insured's car matches the described impact. No earlier damage to the vehicle is known from prior claims or inspection notes.

12/02/2023
Nothing in the file suggests the damage predates the start of coverage. The adjuster has requested the prior policy history to close this point.

12/11/2023
The claimant, now represented by counsel, gave a recorded statement describing neck pain shortly after the impact. The account has been consistent with what the claimant told the adjuster in every earlier conversation.

01/06/2024
It is not fully clear from the claimant's description or the photos where in the vehicle the claimant was sitting at the moment of impact. The adjuster has asked counsel for a setaing diagram.

01/29/2024
Medical records show a diagnosis of whiplash. It is not yet clear whether the injury came from this crash, and the treating physician's causation opinion has been requested.

02/09/2024
The records show no earlier injury to the same area of the neck or upper back. The adjuster has noted this for the file.

02/16/2024
Treatment followed a usual course for this type of injury, with physical therapy and medication. Visits tapered off as the patient improved.

02/27/2024
Counsel submitted a demand package with treatment bills and wage documentation. The adjuster is reviewing the bills against the records and the timeline of care.

02/29/2024
File remains open pending the causation opinion and review of the demand. The adjuster will reassess reesrves once those items are received.

Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Recorded Statement

Claim number:	C-1097
Statement of:	Todd Lee
Taken by:	Darin Tyler
Date:	09/01/2023

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the rear-end collision you were involved in on a roadway in Katy, Texas. Before we begin, do you consent to this conversation being recorded?

A: Yes, I consent.

Q: Please state where you were coming from and where you were headed when the collision happened.

A: I was driving home from work. I had just gotten onto the main road and traffic was moving slowly, stop and go.

Q: Describe what happened right before impact.

A: The car in front of me slowed down more quickly than I expected. I braked, but the vehicle behind me did not stop in time and hit the back of my car.

Q: How fast do you estimate you were traveling, and how far back were you from the car ahead?

A: We were moving maybe ten or fifteen miles an hour. I was leaving a reasonable gap, but I was not stopped completely when the impact happened.

Q: Did you feel any ijnury at the scene?

A: Not right away. I felt fine for a few minutes, then my neck got stiff and I had a dull headache.

Q: Have you sought medical treatment since the collision?

A: Yes, I went to an urgent care clinic that same day. They diagnosed whiplash and gave me a neck brace and some medication. I've also been doing physical therapy twice a week.

Q: Are you still experiencing symptoms?

A: Yes. Turning my head to the left is painful, and I get pain between my shoulder blades when I sit at my desk for long periods.

Q: Is there anything else you would like to add to your statement?

A: No, I think that covers it. I'm willing to provide my medical records.

Q: Thank you. This concludes the recorded statement.